

where a lease is sold under the direction of the Court, and all existing liabilities have been satisfied, and provision made for future fixed sums covenanted to be laid out on the property, the Court will not think it necessary to protect a lessor, who, as the legislature has now pronounced, cannot under such circumstances claim protection out of Court. In other cases the law will remain as it was, and the general principle would appear to be, that the Court should (not by way of indemnity to the executor, except as to costs of resisting proceedings against him, but *ex debito justitiæ* to a *bonâ fide* future creditor) set apart a fund where it plainly appears that future liabilities will arise, and that the whole estate itself is not a sufficient security, and the devisee of the lease cannot give adequate security either by personal undertaking or otherwise. [And in recent cases, both in England (*c*) and in Ireland (*d*), the Court has refused to set aside any part of the assets, or to give the executor any further indemnity than that which arises by reason of the administration of the estate by the Court. But where the estate consists to an appreciable extent of leaseholds, which involve a liability in the executor, he is entitled as of right to have the estate administered by the Court for his protection (*e*).]

61. **Assignment of a chose in action.**—In the assignment of a *chose in action* [not falling within sect. 25 of the Judicature Act, 1873.] the trustee may be required to give a *power of attorney* to receive the money, and to sue in his name, but this should be accompanied by a proviso that no action or suit shall be commenced unless the assignor consent, * or unless the assignee tender a sufficient *indemnity* (*a*). [But in the case of an absolute assignment by writing within sect. 25, as the assignee can, by giving notice under the Act, acquire the right to sue at law in his own name for the *chose in action*, it is conceived that a trustee could not be compelled to give such a power of attorney.]

[(*c*) *Re Bosworth*, 29 W. R. 885; Ir. 199; *Fitzgerald v. Lonergan*, cited 45 L. T. N. S. 136.] 5 L. R. Ir. 203.]

[(*d*) *Buckley v. Nesbitt*, 5 L. R. [(*e*) *Re Bosworth*, 45 L. T. N. S. 136.] (*a*) *Ex parte Little*, 3 Moll. 56.]